



CHAPTER xcv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Oakham Gas Staveley Gas Thirsk Gas and Thirsk District Water. A.D. 1915.

[29th July 1915.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict. c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas and Water Orders Confirmation (No. 1) Act 1915. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation of Orders in schedule.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

SCHEDULE.

LIST OF ORDERS.

OAKHAM GAS.—Order extending the limits of supply of the Oakham Gas Company Limited and empowering the Company to raise additional capital and for other purposes.

STAVELEY GAS.—Order empowering the Staveley Gas Light and Coke Company Limited to extend their limits of supply to construct additional gasworks and to raise additional capital and for other purposes.

THIRSK GAS.—Order empowering the Thirsk Gas Company to construct additional gasworks and to raise additional capital and for other purposes.

THIRSK DISTRICT WATER.—Order extending and defining the limits of supply of the Thirsk District Water Company Limited and authorising the Company to construct new waterworks and to raise additional capital and for other purposes.

OAKHAM GAS.

A.D. 1915.

Order extending the limits of supply of the Oakham Gas Company Limited and empowering the Company to raise additional capital and for other purposes. Oakham.

Preliminary.

1.—(1) This Order may be cited as the Oakham Gas Order 1915. Short and
(2) The Oakham Gas Order 1888 (hereinafter referred to as “the collective
Order of 1888”) and this Order may be cited together as the Oakham titles.
Gas Orders 1888 and 1915.

2. This Order shall come into force and have effect upon the day Commence-
when the Act confirming this Order is passed which date is in this ment of
Order referred to as “the commencement of this Order.” Order.

3. The Gasworks Clauses Act 1847 (except sections 30 to 34) and Incorpora-
the Gasworks Clauses Act 1871 are (except where the same are tion of Acts.
expressly varied by the Order of 1888 or this Order) incorporated
with and form part of this Order Provided that—

(1) Section 13 of the first-mentioned Act shall for the purposes of
incorporation with the Order of 1888 and this Order be
read as if the words “or any premises” were inserted
after the words “private building” and as if the words
“ Provided also that every such contract entered into by
“ the Undertakers shall be alike in terms and amount under
“ like circumstances to all consumers” were added at the
end of that section; and

(2) Section 35 of the same Act shall in and for the purposes of
this Order and of its application to the Undertakers be
read and construed as if the words from “in case the
whole” down to the words “have been paid” were omitted
therefrom and as though the expression “the prescribed
rate” meant the prescribed rates as defined by this Order.

4. In this Order—

The several words and expressions to which meanings are Interpreta-
assigned by the Acts wholly or partially incorporated here- tion.
with and by the Gas and Water Works Facilities Act 1870
have the same respective meanings unless there be something
in the subject or context repugnant to such construction;

The expression “the undertaking” means the undertaking
authorised by the Order of 1888 and this Order;]

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Oakham.

The expression "the limits of supply" means the limits within which the provisions of the Order of 1888 and this Order shall be in force as defined by the section of this Order of which the marginal note is "Limits of supply";

The expression "the inner area" means so much of the limits of supply as is comprised within the urban district of Oakham and the parishes of Barleythorpe Langham and Burley in the rural district of Oakham;

The expression "the prescribed rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of the section of this Order of which the marginal note is "Price of gas—sliding scale";

The expression "the directors" means the directors of the Undertakers.

Undertakers.

Undertakers. 5. The Oakham Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Limits of Supply.

Limits of
supply.

6.—(1) From and after the commencement of this Order the limits within which the provisions of the Order of 1888 and this Order shall be in force and have effect shall be the urban district parishes and portion of parish all in the county of Rutland hereinafter mentioned (that is to say):—

- (a) The urban district of Oakham;
- (b) The parishes of Barleythorpe Langham Whissendine Ashwell and Braunston in the rural district of Oakham; and
- (c) So much of the parish of Burley in the said rural district as lies to the west of an imaginary line drawn parallel to and at a distance of one hundred yards eastwards from the easterly boundary of the road leading from Oakham to Ashwell.

(2) The Undertakers may continue maintain and use any mains pipes and other works laid down or constructed before the commencement of this Order within the limits of supply or any part thereof as if the same had been laid down or constructed under the powers of the Order of 1888 or this Order and the provisions of the Order of 1888 and this Order and of the Acts incorporated therewith respectively shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of the Order of 1888 or this Order.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers have not laid down mains for the supply of gas in the parish of Ashwell or the parish of Braunston this Order shall not be deemed to prevent any company person or local authority having statutory power so to do from applying for an Act of Parliament or Provisional Order for the purpose of providing a supply of gas in either of such parishes and the Undertakers shall not oppose otherwise than upon details any application by the council of any urban district in which such parish or any part thereof may hereafter be comprised or by any company or person for an Act of Parliament or a Provisional Order for the purpose of providing such supply and for the repeal of the powers of the Undertakers in that behalf.

A.D. 1915.

Oakham.

Provision in case of mains not being laid within a limited period.

Price of Gas—Sliding Scale.

8.—(1) The price to be charged by the Undertakers for gas supplied by them within the inner area to persons who shall consume the same by ordinary meter shall be four shillings and sixpence per thousand cubic feet (which price is herein-after referred to as "the standard price") but it shall be lawful for the Undertakers to increase or reduce the price charged by them as aforesaid above or below the standard price subject to a reduction or increase in the dividends payable by the Undertakers on their ordinary capital as follows:—

Price of gas
—sliding
scale.

In respect of any year during any part of which the price charged by the Undertakers as aforesaid within the inner area shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Undertakers as aforesaid within the inner area shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Oakham.

seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

Provided that if in any year the dividends payable shall comprise a fractional amount less than one half per centum the directors may in their discretion add the same to the reserve fund or may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with succeeding dividends accordingly or add the same to the reserve fund.

(2) The prices to be charged by the Undertakers for gas supplied by them within the parishes of Braunston Whissendine and Ashwell to consumers who shall burn the same by ordinary meter shall not exceed the prices for the time being charged by the Undertakers to consumers under like circumstances within the inner area by more than sixpence per one thousand cubic feet but the Undertakers may charge in any one or more of the parishes mentioned in this subsection prices less than the prices which they are authorised to charge in such parish or parishes provided that such reduced prices shall not at any time be less than the price charged during the same time to consumers under like circumstances within the inner area.

New Capital.

New capital.

9. The limitation prescribed by the Order of 1888 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the new capital") not exceeding six thousand pounds including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole eighteen thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New capital
to be sold by
auction or
tender.

10.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time by special resolution determine Provided as follows :—

(a) Notice of the intended sale shall be given in writing to the respective clerks of the Urban District Council of Oakham and the Rural District Council of Oakham and to the

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two successive weeks in one or more local newspapers circulating within the limits of supply:

A.D. 1915.

Oakham.

- (b) A reserve price shall be fixed and notice thereof shall be sent by the directors in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened until after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserved price to the holders of shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amount applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. obtained as premium (if any) and the highest and lowest prices
Oakham. obtained for the shares or stock as the case may be.

Limits of
dividend on
share capital.

11. Except as provided by the section of this Order of which the marginal note is "Price of gas—sliding scale" the Undertakers shall not in any year declare or pay out of their profits any larger dividends than the following (in this Order referred to as "the standard rates of dividend") (that is to say):—

On the original capital of eight thousand pounds authorised by the Order of 1888 ten pounds in respect of every one hundred pounds of such original capital:

On the additional capital of four thousand pounds authorised by the Order of 1888 seven pounds in respect of every one hundred pounds actually paid up of so much of such additional capital as may be issued as ordinary capital and six pounds in respect of every one hundred pounds actually paid up of so much of such additional capital as may be issued as preference capital:

On the new capital seven pounds in respect of every one hundred pounds actually paid up of so much of such new capital as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of so much of such new capital as may be issued as preference capital.

Dividends on
different
classes of
ordinary
capital to be
paid propor-
tionately.

12. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applicable to dividend after payment of the dividends on the preference capital (if any) of the Undertakers shall be insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Limit of
borrowing
powers.

13. The Undertakers may borrow on mortgage of the undertaking the following sums (that is to say):—

- (1) A further sum not exceeding one thousand pounds in respect of the capital authorised by the Order of 1888; and
- (2) Any sum or sums not exceeding in the whole one-third part of the amount of the new capital at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order;

but no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

A.D. 1915.

14. The Undertakers shall not during the continuance of the present war and within twelve months thereafter raise or borrow any money under the provisions of this Order unless the consent of the Treasury has been previously obtained.

Oakham.

Consent of
Treasury to
raising of
money.

Other Financial Provisions.

15.—(1) The Undertakers may apply to the purposes of this Order to which capital is properly applicable any moneys which they have raised or are authorised to raise under the Order of 1888.

Application
of funds.

(2) All moneys raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.

16.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

Power to
create a
special pur-
poses fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) Subject to the provisions of subsection (3) of this section the Undertakers may transfer to the credit of the special purposes fund

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. such sum as they shall think fit out of the amount standing on the
Oakham. thirty-first day of December one thousand nine hundred and fourteen
to the credit of the profit and loss account which was carried forward
to the next account.

Limiting
amount to be
carried for-
ward.

17. After the commencement of this Order it shall not be lawful
for the Undertakers in making out their statement of accounts for any
year to carry forward to the credit of the profit and loss account of
the Undertaking for the next following year a balance in excess of
the sum of the following amounts (that is to say):—

(a) The amount required for paying any dividend on the capital
of the Undertakers which the Undertakers are entitled to
pay but have not paid in respect of that year; and

(b) An amount equal to the total sum which the Undertakers
would be lawfully entitled to distribute as dividend in
respect of the next following year having regard to the
price charged by them for gas at the date when such
statement of accounts is made out.

Reserve fund.

18. Where in any year the dividend which may be paid by the
Undertakers on the ordinary capital of the Undertakers shall exceed
the standard rates of dividend by reason of the price charged by
the Undertakers for gas to persons who shall consume the same by
ordinary meter within the inner area in such year being below the
standard price then out of the amount of the divisible profits of the
Undertakers applicable to the payment of such excess of dividend the
Undertakers may in such year set apart such sum as they think fit by
way of a reserve fund and all sums (if any) so set apart by the
Undertakers and any reserve fund of the Undertakers existing at the
commencement of this Order may be invested in Government or other
securities and the dividends and interest arising from such securities
may also be invested in the same or the like securities in order that the
same may accumulate at compound interest and the fund so formed shall
be called "the reserve fund" and shall be applicable to the payment of
dividend in any year in which the clear profits of the Undertakers
shall be insufficient to enable the Undertakers in such year to pay the
dividend at the prescribed rates on the ordinary capital of the Under-
takers and save as in this Order provided no sum shall in any year
be carried by the Undertakers to any reserve fund.

Transfer to
reserve fund.

19. The Undertakers may transfer to the credit of the reserve fund
such sum as they shall think fit not exceeding two thousand pounds
out of the amount standing on the thirty-first day of December one
thousand nine hundred and fourteen to the credit of the profit and
loss account which was carried forward to the next account.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

A.D. 1915.

Quality Testing and Pressure.

Oakham.

20. The prescribed number of candles shall not be less than fourteen. Quality of gas.

21.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-place shall be the testing place provided by the Undertakers at their works. Testing for quality.

(2) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(3) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the Bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Undertakers or of the urban district council of Oakham or of the rural district council of Oakham approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(4) The Undertakers shall provide at the testing place all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

22.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than twelve-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Miscellaneous.

23. The following sections of the Order of 1888 are hereby repealed (that is to say):— Repeal of portions of Order of 1888.

Section 5 Limits of Order.

Section 14 Limits of dividend on capital.

Section 15 Prescribed rates to be paid proportionately.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.
Oakham.

Section 17 If profits exceed the amount limited excess may be invested and form an insurance fund.

Section 18 Application of excess of profits over prescribed rates.

Section 19 Reserve fund.

Section 25 Quality of gas.

Section 26 Fixing maximum price of gas with sliding scale as to dividend.

Section 27 Pressure of gas.

Section 28 Testing of gas.

Amending
section 20 of
Order of
1888.

24. From and after the commencement of this Order section 20 (Additional lands) of the Order of 1888 shall be read and have effect as if the words "or of storing gas" were omitted from that section but nothing herein contained shall authorise the Undertakers to store gas on any lands (other than the lands described in the schedule to the Order of 1888) except subject to the provisions of section 5 of the Gasworks Clauses Act 1871.

Amending
section 30 of
Order of
1888.

25. From and after the commencement of this Order section 30 (Undertakers to pay interest on deposit) of the Order of 1888 shall be read and have effect as if the words "four pounds" were inserted therein in lieu of the words "five pounds" but this alteration shall not affect the rate of interest on any deposits in the hands of the Undertakers at the commencement of this Order.

Power to lay
pipes for
ancillary
purposes.

26. The Undertakers having first obtained the consent in writing of the road authority concerned may lay down repair take up alter relay and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or other residual products thereof or for any purposes connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as they are applicable extend and apply mutatis mutandis to and for the purposes of this section.

Power to lay
pipes in
streets not
dedicated to
public use.

27. The Undertakers may but only with the consent of the owner of the soil of such street on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation with the Order of 1888 and this Order.

Dwelling-
houses for
employees
offices &c.

28. The Undertakers may purchase or take on lease houses cottages and other buildings for persons in their employ and offices showrooms and other buildings for the purposes of the undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging or leased to the Undertakers.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

29.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the same part of the limits of supply through any other kind of meter or by any other method of supply.

A.D. 1915.

Oakhām.

Charge for gas supplied by means of prepayment meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Undertakers in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

30. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

(1) The Undertakers may specify the size and material of the pipes with the fittings thereof which either in the first instance or on the occasion of any renewal are to be laid by the consumer on his own premises between the Undertakers' mains and the meter so far as the same are intended to be covered over:

(2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers:

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumers' meter shall be placed as near as

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Oakham.

reasonably practicable to the Undertakers' main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipe or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to require use of anti-fluctuators for gas engines.

31. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to enter premises and remove fittings.

32. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Undertakers by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Undertakers shall not require to take a supply of gas from the Undertakers or to hire from the Undertakers all or any of the pipes meters fittings or apparatus belonging to the Undertakers and let by them on hire to any former occupier of such premises.

Gas consumers to give notice to Undertakers

33. At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer either personally at the office of the Undertakers or in writing before he shall quit any premises

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Undertakers.

A.D. 1915.

Oakham.
before
removing.

34. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by the Undertakers without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to re-
fuse supply
to persons in
debt for other
premises.

35. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at the office of the Undertakers.

Notice to dis-
continue sup-
ply of gas.

36. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Undertakers.

Period of
error in de-
fective
meters.

37. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond the limits of supply.

Undertakers
may contract
with local
authority &c.
for supply in
bulk.

38. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Undertakers a supply or the continuance of a supply of gas for premises having a supply of gas from an installation other than that of the Undertakers or a supply of electricity unless he shall have previously agreed to pay to the Undertakers such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid

Supply of
gas when
consumer has
separate
supply.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Oakham.

For protection of Midland Railway Company.

39. The provisions of the section of this Order of which the marginal note is "Supply of gas when consumer has separate supply" shall as regards premises belonging to and used and occupied by the Midland Railway Company as part of or for the purposes of their railway under any Act of Parliament apply only when the purposes for which a supply or the continuance of a supply of gas is demanded are purposes for which the said company or the person making the demand on their behalf has at the same time a supply of gas from an installation other than that of the Undertakers or a supply of electricity and the minimum annual sum which the said company or person shall be required to pay for a supply or the continuance of a supply of gas in the circumstances aforesaid to any such premises shall not exceed twenty-five shillings for any period of three months.

Recovery of demands.

40. Proceedings for the recovery of any demand made under the authority of the Order of 1888 or this Order or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of penalties &c.

41. Save as by this Order otherwise expressly provided all offences against the Order of 1888 or this Order and all penalties forfeitures costs and expenses imposed by or recoverable under the Order of 1888 or this Order or any bye-law made in pursuance thereof may be prosecuted or recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Differences with road authority or railway or other companies.

42. If any difference arises between the Undertakers and any road authority railway canal or other company or person whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Costs of Order.

Costs of Order.

43. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers and the Undertakers may apply to the payment of the said costs charges and expenses a sum not exceeding three hundred pounds out of the amount standing on the thirty-first day of December one thousand nine hundred and fourteen to the credit of the profit and loss account which was carried forward to the next account.

STAVELEY GAS.

A.D. 1915.

Order empowering the Staveley Gas Light and Coke Company Limited to extend their limits of supply to construct additional Gasworks and to raise additional capital and for other purposes. Staveley.

Preliminary.

1. This Order may be cited as the Staveley Gas Order 1915 and the Staveley Gas Order 1905 (in this Order referred to as "the Order of 1905") and this Order may be cited together as the Staveley Gas Orders 1905 and 1915. Short and collective titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.

3. The following Acts are (except where the same are expressly varied by the Order of 1905 or this Order) incorporated with and form part of this Order (that is to say):— Incorporation of Acts.

The Gasworks Clauses Act 1847 (except sections 30 to 34):

Provided that—

(1) Section 13 thereof shall for the purposes of incorporation with the Order of 1905 or this Order be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section; and

(2) Section 35 thereof shall for the purposes of incorporation with this Order and of its application to the Undertakers be read and construed as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" meant the prescribed rates of dividend as defined by this Order:

The Gasworks Clauses Act 1871.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order or by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction And in the construction of this Order or of any such Act for the purposes of Interpretation.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. this Order the expression "the undertaking" means the undertaking
Staveley. authorised by the Order of 1905 as extended by this Order the
expression "the prescribed rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions contained in this Order and the expression "the directors" means the directors of the Undertakers.

Undertakers.

Undertakers. 5. The Staveley Gas Light and Coke Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Extension of Limits of Supply.

Extension of limits of supply. 6.—(1) The limits of supply of the Undertakers defined by the Order of 1905 (in this Order called "the existing limits of supply") are hereby extended so as to include the parish of Barlborough in the rural district of Clown in the county of Derby (in this Order called "the additional limits of supply") and subject to the provisions of this Order the Undertakers shall have and may exercise within the additional limits of supply all and the like powers privileges and authorities and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have may exercise and are subject to within the existing limits of supply.

(2) The Undertakers may continue maintain and use any mains pipes and other works laid down or constructed before the commencement of this Order within the additional limits of supply as if the same had been laid down or constructed under the powers of this Order and the provisions of this Order and of the Acts incorporated therewith shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of this Order.

For protection of Derbyshire County Council.

7. In executing the works and exercising the powers by the Order of 1905 or this Order authorised so far as they affect any main road or any county or main road bridge or the approaches thereto in the county of Derby vested in the county council of the administrative county of Derby (in this section called "the county council") the following provisions for the protection of the county council shall (unless otherwise agreed) apply and have effect (that is to say):—

(1) All mains or pipes to be laid by the Undertakers after the commencement of this Order under the Order of 1905 or this Order in or along any main road or in upon or across any county or main road bridge shall where reasonably practicable be laid in such a position in any such road or

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

at the side thereof and if under the metalled portion thereof at such depth as the county council shall by writing under the hand of their surveyor (herein-after referred to as "the county surveyor") reasonably direct. Provided nevertheless that in the event of the Undertakers removing or replacing any existing mains or pipes by new mains or new pipes such new mains or new pipes shall wherever practicable be laid in the same position and at the same depth as the existing mains or pipes which may be so removed or replaced accordingly:

A.D. 1915.

Staveley.

- (2) The surplus paving metalling or materials removed during the laying of any mains pipes or other works to be laid as aforesaid shall not be placed on the metalled portion of the road without the written consent of the county surveyor and subject to such conditions (other than a payment of money) and directions as he may reasonably require or give and all surplus paving metalling or materials removed during the laying of any such mains pipes or works after the commencement of this Order on any main road or in upon or across any county or main road bridge and not required by the Undertakers for the purpose of reinstating and making good the road or the county or main road bridge may be used by the county council for the maintenance and repair of any main or other road in the county:
- (3) The notice required by section 8 of the Gasworks Clauses Act 1847 shall (except for the laying connecting or repairing of consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst or other emergency in which case the longest reasonably practicable notice shall be given) be not less than seven days instead of three days:
- (4) Nothing in the Order of 1905 or this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the county surveyor which consent shall not be unreasonably withheld:
- (5) Nothing in the Order of 1905 or this Order shall interfere with the right of the county council to alter the level of or deviate or improve any main road or to remove alter widen or reconstruct any county or main road bridge or approach in over or along which any mains pipes or works of the Undertakers shall have been laid in the same manner

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Staveley.

as they might have altered deviated improved widened or reconstructed such road bridge or approach if the said Orders had not been made and in the event of any such alteration deviation improvement removal widening or reconstruction being intended by the county council the Undertakers shall with all convenient speed on receiving ten days' notice (or shorter in cases of emergency) in writing under the hand of the county surveyor so to do alter the position of any such mains pipes or works in the manner and to such extent as such notice may reasonably prescribe and replace the same to his satisfaction Provided that the county council shall afford all reasonable facilities to the Undertakers for such alteration and for temporarily carrying or supporting such mains pipes or works along such road or across or under the stream so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains pipes or works Provided also that all expense incurred by the Undertakers under this subsection shall be repaid to them by the county council except so far as such expense shall be incurred consequent upon the removal alteration widening or reconstruction of any county or main road bridge or approach in which mains pipes or works shall be laid by the Undertakers after the commencement of this Order Provided further that if the removal alteration widening or reconstruction of any such county or main road bridge is required solely for the accommodation of any trolley vehicle system or motor omnibus service of the county council or any light railway or tramway belonging to or worked by the county council then the county council shall in any event repay to the Undertakers any expenses reasonably incurred by the Undertakers in complying with any requirements of the county surveyor under this subsection and the facilities to be provided by the county council as aforesaid shall be afforded at the expense of the county council:

- (6) All works of the Undertakers so far as they affect any main road or county or main road bridge shall be so executed by the Undertakers as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Undertakers shall not without the consent of the county surveyor open or break up at any one time a greater continuous length than two hundred yards of the metalled

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

portion of any main road nor more than one hundred yards where there is only sufficient room for one cart to pass nor in the latter case shall such openings or breakings up be carried out without leaving where reasonably practicable a clear space of one hundred yards between consecutive openings or breakings up unless with the consent of the county surveyor which consent shall not be unreasonably withheld. Provided always that where reasonably practicable at least twelve feet of metalled road shall be kept clear for the use of the public:

A.D. 1915.
Staveley.

(7) The Undertakers shall repay to the county council all reasonable and additional expenses necessarily incurred or paid by the county council in the repair and reinstatement of so much of any main road or of the road over any county or main road bridge or the approaches thereto in which the mains or pipes of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration removal or repair of the said mains or pipes:

(8) All expenses payable by the Undertakers to the county council or by the county council to the Undertakers under the provisions of this section shall be recoverable as a debt due from the Undertakers to the county council or from the county council to the Undertakers as the case may be:

(9) If any difference arises between the county council and the Undertakers touching this section or any thing to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by arbitration by an engineer to be agreed upon between the county council and the Undertakers and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such arbitration.

8. The following provisions for the protection of the Great Central Railway Company (herein-after called "the railway company") shall unless otherwise agreed in writing between the railway company and the Undertakers apply and have effect (that is to say):—

For protection of Great Central Railway Company.

(1) The execution by the Undertakers of any works authorised by this Order upon across or in any way affecting the railway and other property of or any road repairable by the railway company (all or any part whereof as the case may be is in

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Staveley.

this section included in the expression "the property of the railway company") shall be done and completed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the railway company and (except in case of emergency) according to such plans and drawings and in such manner as shall previously be reasonably approved by him in writing or in case of difference as may be determined by arbitration in the manner herein-after provided. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice of his objection thereto he shall be deemed to have approved thereof:

- (2) If within fourteen days after the receipt of any such plans and drawings the railway company give the Undertakers notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Undertakers) which will cross over or under any property belonging to them the railway company may themselves execute such part of such work at the costs charges and expenses of the Undertakers and to the reasonable satisfaction and under the superintendence of the principal engineer of the Undertakers:
- (3) All works which the Undertakers may execute under this section shall be so constructed and maintained as to cause as little injury as may be to the property of the railway company and so as to cause no interruption to the passage or conduct of the railway company's traffic and if any injury or interruption as aforesaid shall arise from or in any way be owing to the act or default or the works of the Undertakers the Undertakers shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:
- (4) The Undertakers shall repay to the railway company the reasonable expense of any watching which may be necessary to provide for the protection of the property of the railway company or the traffic on their railway during the carrying out of the works aforesaid:
- (5) Any additional expense which the railway company may reasonably and properly incur in maintaining their railway bridges and works by reason of the existence of any mains or pipes of the Undertakers laid under the powers of this

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xciv.]
(No. 1) Act, 1915.

Order across over or under such bridges or works shall be paid by the Undertakers: A.D. 1915.
Staveley.

- (6) Any difference arising between the Undertakers and the railway company under this section shall be determined by an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers at the request of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Additional Gasworks and Lands.

9. The purchase by the Undertakers prior to the commencement of this Order of the lands described in the schedule to this Order annexed is hereby confirmed. Confirmation of purchase of lands.

10. Notwithstanding anything in section 16 (Power to purchase additional land) of the Order of 1905 the Undertakers upon the lands described in the schedule to this Order annexed so long as they are possessed of the same may maintain and continue alter extend improve and renew or discontinue the gasworks and works in connexion therewith existing at the commencement of this Order and may erect maintain alter enlarge extend improve and renew new or additional gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the existing limits of supply and the additional limits of supply. Power to construct additional gasworks &c.

11. The Undertakers may—

- (a) Upon the lands respectively described in Schedule A. to the Order of 1905 and the schedule to this Order annexed so long as they are possessed of the same work up and convert the residual products arising directly or indirectly from the manufacture of gas by them: Power to convert residual products.
- (b) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith upon the same lands manufacture other products of the same kind as the Undertakers are manufacturing from their own residual products:
- (c) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid:

But the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. by the Undertakers or purchased from other gas undertakings is merely subsidiary :
Staveley.

And the restrictions in this section contained relative to the working up conversion and manufacture of residual products shall extend and apply to the Undertakers as if the same had been inserted in section 17 (Undertakers may maintain and continue gasworks on lands described in Schedule A. and may make and sell gas) of the Order of 1905.

New Capital.

New capital.

12. The limitation prescribed by the Order of 1905 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the new capital") not exceeding five thousand pounds including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole sixteen thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New capital
to be sold by
auction or
tender.

13.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply of the Undertakers and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed by the directors and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds: A.D. 1915.

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum
In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

Staveley.

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary or preference shares or stock of the Undertakers in manner prescribed by a resolution passed by the directors and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock as the case may be.

14. Except as provided by the section of this Order of which the marginal note is "Price of gas—sliding scale" the Undertakers shall not in any year declare or pay out of their profits any larger dividends than the following (in this Order referred to as "the standard rates of dividend") (that is to say):—

Limits of dividend on share capital.

On the original capital of four thousand five hundred pounds referred to in the Order of 1905 ten pounds in respect of every one hundred pounds actually paid up of such original capital:

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Staveley.

On the additional capital of six thousand five hundred pounds authorised by the Order of 1905 seven pounds in respect of every one hundred pounds actually paid up of so much of such additional capital as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of so much of such additional capital as may be issued as preference capital:

On the new capital seven pounds in respect of every one hundred pounds actually paid up of so much of such new capital as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of so much of such new capital as may be issued as preference capital.

Limit of
borrowing
powers.

15. Notwithstanding anything contained in section 15 (Limit of borrowing powers) of the Order of 1905 the Undertakers may borrow on mortgage of the undertaking any sum of money not exceeding one-third of the amount of the capital of the Undertakers for the purposes of the undertaking at the time actually raised by the issue of shares or stock including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Application
of money.

16. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.

Consent of
Treasury to
raising of
money.

17. The Undertakers shall not during the continuance of the present war and within twelve months thereafter raise or borrow any money under the provisions of this Order unless the consent of the Treasury has been previously obtained.

Dividends
on different
classes of
ordinary
shares or
stock to be
paid propor-
tionately.

18. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applicable to dividend after payment of the dividends on the preference capital (if any) of the Undertakers shall be insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Application
of excess of
profits over
prescribed

19. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the prescribed rates on the ordinary capital

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

of the Undertakers the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year. Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend on the preference capital and the dividend at the prescribed rates on the ordinary capital of the Undertakers.

A.D. 1915.

Staveley.
rates of
dividend.

20.—(1) The directors may if they think fit in any half-year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per-centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

Power to
create a
special pur-
poses fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) Subject to the provisions of subsection (3) of this section the Undertakers may transfer to the credit of the special purposes fund such sum as they shall think fit out of the amount standing on the thirty-first day of December one thousand nine hundred and fourteen to the credit of the profit and loss account which was carried forward to the next account.

21. Where in any year the dividend of the Undertakers on the ordinary capital of the Undertakers shall exceed the standard rates of dividend by reason of the price charged by the Undertakers for gas to persons who shall consume the same by ordinary meter within the existing limits of supply and the additional limits of supply in such

Reserve
fund.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. year being below the standard price then out of the amount of the
Staveley. divisible profits of the Undertakers applicable to the payment of such
excess of dividend the Undertakers may in such year set apart such
sum as they shall think fit by way of a reserve fund and all sums
(if any) so set apart by the Undertakers and any reserve fund of
the Undertakers existing at the commencement of this Order may
be invested in Government or other securities and the dividends and
interest arising from such securities may also be invested in the same
or the like securities in order that the same may accumulate at
compound interest and the fund so formed shall be called "the reserve
fund" and shall be applicable to the payment of dividend in any
year in which the clear profits of the Undertakers shall be insufficient
to enable the Undertakers in such year to pay the dividend at the
prescribed rates on the ordinary capital of the Undertakers and save
as in this Order provided no sum shall in any year be carried by the
Undertakers to any reserve fund.

Quality Testing and Pressure of Gas.

Standard
calorific
power.

22.—(1) As from the first day of January one thousand nine
hundred and sixteen so much of the provisions of sections 12 28 29
30 32 33 and 36 of the Gasworks Clauses Act 1871 as relate to
the illuminating power of gas shall cease to apply to the Undertakers
or in respect of the gas supplied by them and sections 23 26 and
34 of the Order of 1905 shall be and the same are hereby repealed
and there shall be substituted a standard of calorific power for the
prescribed illuminating power.

(2) The gas supplied by the Undertakers within the existing
limits of supply and the additional limits of supply shall be of a
calorific power of five hundred British thermal units gross per cubic
foot (the expression "British thermal units" being used in this
Order as meaning British thermal units gross per cubic foot) and
that power is in this Order referred to as "the standard calorific
power."

(3) The following provisions shall apply with respect to the testing
for calorific power of the gas supplied by the Undertakers and to
forfeitures in respect of deficient calorific power of such gas:—

(a) Within one month after the said first day of January one
thousand nine hundred and sixteen the Undertakers shall
provide and shall thereafter keep and maintain at their
works a testing-place (which shall for all the purposes
of the Gasworks Clauses Act 1871 be the prescribed
testing-place) with apparatus for testing the calorific power

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

of the gas supplied by the Undertakers and such apparatus shall be similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific power of gas and the test shall be made in the mode and under the conditions for the time being prescribed by the said referees. When the Undertakers shall have provided in accordance with the provisions of this subsection apparatus for testing the calorific power of the gas they shall be at liberty to remove from the said testing-place any apparatus which they have provided thereat for testing the illuminating power of such gas :

A.D. 1915.

Staveley.

- (b) Any gas examiner appointed in accordance with the provisions of the Gasworks Clauses Act 1871 may by means of the testing apparatus provided by the Undertakers as aforesaid test the calorific power of the gas supplied by the Undertakers at the testing-place at any time between the hours prescribed by section 29 of that Act but subject as next provided not more than one testing for calorific power shall be made on any day :
- (c) In the event of the calorific power being on any testing ascertained to be below the standard calorific power the gas examiner shall forthwith give notice thereof to the Undertakers and a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the ascertained calorific power of the gas supplied by the Undertakers on that day :
- (d) The gas examiner shall on the day immediately following that on which any testing has been made under this section make and deliver a report of the results of his testing to the Undertakers and to the local authority or the justices by whom he was appointed and such report shall be receivable in evidence :
- (e) If on any testing the ascertained calorific power on any day of the gas supplied by the Undertakers is found to be below the standard calorific power the Undertakers shall be liable to forfeitures in respect of any deficiency as herein-after mentioned but the Undertakers shall not be liable to any forfeiture or proceedings for or in respect of any such deficiency unless the same has been ascertained in the manner and subject to the conditions prescribed by this section :

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Staveley.

(f) The forfeitures to which the Undertakers shall be liable in respect of any ascertained deficiency in the calorific power of the gas supplied by them shall not exceed the following sums (that is to say)—

Where the deficiency does not exceed fourteen British thermal units two pounds;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units five pounds;

For each complete twenty-eight British thermal units of defective power ten pounds:

(g) Any forfeiture under the provisions of this section may be sued for and recovered in manner provided by section 36 of the Gasworks Clauses Act 1871 for the recovery of penalties under that Act.

Power to
Board of
Trade to
vary standard
calorific
power.

23. If within one month after the expiration of a period of three years from the first day of January one thousand nine hundred and sixteen or after the expiration of any subsequent period of three years either the Undertakers or any rural district council having jurisdiction within the existing limits of supply or the additional limits of supply shall desire that the standard calorific power prescribed by the section of this Order of which the marginal note is "Standard calorific power" shall be reduced or increased and shall give to the Undertakers and to the Board of Trade notice in writing of such desire it shall be lawful for the Board of Trade after hearing the parties and considering any representations made by any of them by order under the hand of an assistant secretary to reduce or increase the amount of the said standard calorific power to such extent as to the said Board may seem fit and the said Board may by such order make all such modifications of this Order as may be necessary in consequence of any such reduction or increase as aforesaid and may also direct the manner in which the costs charges and expenses of the said parties and of the said Board of and incidental to any such application and any inquiry held by or under the direction of the said Board in connexion therewith shall be borne.

Pressure of
gas.

24.—(1) As from the first day of January one thousand nine hundred and sixteen section 25 of the Order of 1905 shall be repealed and all gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than twelve-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied and the Undertakers shall afford to the examiner all reasonable facilities for making any such test.

A.D. 1915.

Staveley.

25. No penalty or forfeiture shall be incurred by the Undertakers for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Exemptions
from
penalties in
certain cases.

Price of Gas.

26. As from the first day of June one thousand nine hundred and sixteen section 24 of the Order of 1905 shall be repealed and in lieu thereof the following provisions shall be in force and have effect :--

Price of gas—
Sliding
scale.

The price to be charged by the Undertakers for gas supplied by them within the existing limits of supply and the additional limits of supply to persons who shall consume the same by ordinary meter shall be four shillings per thousand cubic feet (which price is hereinafter referred to as "the standard price") but it shall be lawful for the Undertakers to increase or reduce the price charged by them as aforesaid above or below the standard price subject to a reduction or increase in the dividends payable by the Undertakers on their ordinary capital as follows :—

In respect of any year during any part of which the price charged by the Undertakers as aforesaid shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rates of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Undertakers as aforesaid shall have been one penny or more below the standard price the dividend payable

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) *Act*, 1915.

A.D. 1915.

Staveley.

by the Undertakers may in respect of each penny by which the standard price shall have been reduced be increased above the standard rates of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

Provided that if in any year the dividends payable shall comprise a fractional amount less than one half per centum the directors may in their discretion add the same to the reserve fund or may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with succeeding dividends accordingly or add the same to the reserve fund.

Charge for
gas sup-
plied by
means of
prepayment
meters.

27.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the existing limits of supply and the additional limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Undertakers in connexion therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

Miscellaneous.

A.D. 1915.

28. Nothing in this Order contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the first day of January one thousand nine hundred and sixteen with respect to the gasworks of or the supply of gas by the Undertakers.

Staveley.
Saving of
existing
contracts.

29. Nothing in this Order shall exempt the Undertakers from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as to
general Acts.

30. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

The SCHEDULE referred to in the foregoing Order.

ADDITIONAL GAS LANDS.

A piece of land situate in the parish of Staveley in the county of Derby and now belonging or reputed to belong to and in the occupation of the Undertakers containing 1000 square yards or thereabouts bounded on the north-west by the Chesterfield Canal on the north-east by land belonging or reputed to belong to and in the occupation of the Undertakers and described in Schedule A. to the Order of 1905 and now used by the Undertakers for the manufacture of gas on the south-east by land belonging or reputed to belong to the Chesterfield Brewery Company Limited and numbered 995 in the parish of Staveley as shown on the $25^{\frac{1}{10}}$ Ordnance map (second edition) 1898 marked Derbyshire XVIII 16 and on the south-west by allotment gardens belonging or reputed to belong to the Duke of Devonshire.

A triangular piece of land situate in the parish of Staveley in the county of Derby and now belonging or reputed to belong to and in the occupation of the Undertakers containing three perches or thereabouts bounded on the south-west by land belonging or reputed to belong to and in the occupation of the Undertakers and described in Schedule A. to the Order of 1905 and now used by the Undertakers for the manufacture of gas on the north-west by the approach road to the gasworks from the town of Staveley and on the east by land and abandoned pumping plant belonging or reputed to belong to the Staveley Coal and Iron Company Limited.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

THIRSK GAS.

Thirsk Gas.

Order empowering the Thirsk Gas Company to construct additional gasworks and to raise additional capital and for other purposes.

Preliminary.

Short title.

1.—(1) This Order may be cited as the Thirsk Gas Order 1915.

(2) The Thirsk Gas Act 1871 (herein-after referred to as “the Act of 1871”) and this Order may be cited together as the Thirsk Gas Act and Order 1871 and 1915.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as “the commencement of this Order.”

Incorpora-
tion of Acts.

3. The following Acts and parts of Acts are (subject to the provisions of and except where the same are expressly varied by this Order or by the Act of 1871 as amended by this Order) incorporated with and form part of this Order (that is to say):—

The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking):

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the several matters following (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

A.D. 1915.

Thirsk Gas.

The Gasworks Clauses Act 1847 Provided that in the application to the Undertakers of the provisions of that Act as incorporated with the Act of 1871 and this Order section 13 shall be read and construed as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section :

The Gasworks Clauses Act 1871.

4. In this Order—

Interpretation.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Gas and Water Works Facilities Act 1870 have the same respective meanings unless there be something in the subject or context repugnant to such construction ;

The expression "the limits of supply" means the limits defined in the section of this Order of which the marginal note is "Limits of supply" ;

The expression "the undertaking" means the undertaking authorised by the Act of 1871 and this Order and shall include the gasworks and works connected therewith by the Act of 1871 and this Order authorised to be maintained or constructed.

Undertakers.

5. The Thirsk Gas Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Limits.

6. From and after the commencement of this Order the limits within which the Act of 1871 and this Order shall be in force and have effect shall be the parish of Thirsk in the rural district of Thirsk in the North Riding of the county of York and so much of the parish of Sowerby in the same rural district as is shown on the map signed in duplicate by an assistant secretary of the Board of Trade one copy whereof has been deposited at the Parliament Office House of Lords and the other at the office of the Undertakers.

Limits of supply.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) *Act*, 1915.

A.D. 1915.

Thirsk Gas.

Additional Lands and Gasworks.

Additional
lands.

7. In addition to any other lands vested in the Undertakers by or which the Undertakers have purchased or are authorised to purchase under the Act of 1871 they may for the purposes of the undertaking purchase by agreement but not otherwise and hold any further lands not exceeding three acres in extent Provided that the Undertakers shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purposes of manufacturing gas or residual products except the lands respectively described in the schedule to the Act of 1871 and the First Schedule to this Order annexed.

Power to
construct
additional
gasworks &c.

8. The Undertakers may upon the lands described in the First Schedule to this Order annexed so long as they are possessed of the same erect maintain alter extend improve and renew or discontinue gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply.

Power to
convert &c.
residual
products.

9. The Undertakers may—

(a) Upon the lands respectively described in the schedule to the Act of 1871 and the First Schedule to this Order annexed so long as they are possessed of the same work up and convert the residual products arising directly or indirectly from the manufacture of gas by them :

(b) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith upon the same lands manufacture other products of the same kind as the Undertakers are manufacturing from their own residual products :

(c) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid :

But the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Undertakers or purchased from other gas undertakings is merely subsidiary.

Dwelling-
houses for
employees
offices &c.

10. The Undertakers may purchase or take on lease houses cottages and other buildings for persons in their employ and offices showrooms and other buildings for the purposes of the undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging or leased to the Undertakers.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

Additional Capital.

A.D. 1915.

11. In addition to the capital already authorised to be raised by the Undertakers under the Act of 1871 they may—

Thirsk Gas.

Additional capital.

- (1) Raise any further sums not exceeding in the whole six thousand six hundred pounds (in this Order referred to as "the additional capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of six thousand six hundred pounds; and

- (2) Borrow on mortgage of the undertaking—

- (a) A further sum not exceeding one thousand pounds in respect of the capital authorised by the Act of 1871; and

- (b) Any sum or sums not exceeding in the whole one-third part of the additional capital which at the time of borrowing has been raised under the powers of this Order but no sum shall be borrowed in respect of any capital so raised until the Undertakers have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued including the premiums (if any) realised on the sale thereof have been fully paid up.

12. The Undertakers shall not during the continuance of the present war and within twelve months thereafter raise or borrow any money under the provisions of this Order unless the consent of the Treasury has been previously obtained.

Consent of Treasury to raising of money.

13.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

Additional capital to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk to the rural district council of Thirsk and to the

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Thirsk Gas.

secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

- (b) A reserve price shall be fixed by the directors and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of each class of shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of shares or stock.

A.D. 1915.
Thirsk Gas.

14. The additional capital shall be part of the general capital of the Undertakers and the holders of the new shares or stock therein shall in proportion to the amount of such shares or stock be entitled to the like rights of voting (except as herein-after provided) and any other rights qualifications and privileges and be subject to the like provisions and liabilities as the other holders of shares or stock of the same class or description.

Privileges &c,
of holders of
additional
capital.

15. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock in the additional capital to which a preferential dividend shall be assigned.

Restriction
as to votes
in respect of
preference
capital.

16. The profits of the Undertakers which may be divided in respect of any year among the holders of the additional capital shall not exceed the following rates namely :—

Limit of
dividends on
additional
capital.

On so much of such capital as shall be issued as preference capital such rate (not exceeding the rate of five per centum per annum) as shall be specified in the resolution creating such stock :

On so much of such capital as shall be issued as ordinary capital the rate of seven per centum per annum unless the Undertakers are entitled and desire to make up the deficiency of any dividends paid within the previous five years which shall have been less than seven per centum per annum.

17. Notwithstanding anything in the Gasworks Clauses Act 1847 contained the Undertakers shall not make up the deficiency of any previous dividend upon the ordinary capital in any year except within five years of the payment of such deficient dividend.

Restriction
on making up
deficiencies of
dividends of
previous
years.

Miscellaneous Financial Provisions.

18.--(1) All moneys raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of moneys.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. (2) The Undertakers may apply to any of the purposes of this
Thirsk Gas. Order to which capital is properly applicable any moneys which they
 have raised or are authorised to raise under the Act of 1871.

Dividends
on different
classes of
ordinary
capital to
be paid *pari*
passu up to
seven per
centum per
annum.

19. In case in any year the funds of the Undertakers applicable to dividend after payment of the dividends on the preference capital (if any) of the Undertakers shall be insufficient to pay the full amount of dividend at the prescribed rates on each class of ordinary capital of the Undertakers such funds shall be applied in the first place in the payment of a dividend of equal amount on all classes of ordinary capital until there shall have been paid a dividend for that year of seven pounds per centum on the amount actually paid up on such capital and then in payment of a further dividend upon the original capital of the Undertakers as defined in section 20 of the Act of 1871.

Power to
create debenture stock.

20. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on all debenture stock and mortgages at any time after the commencement of this Order created and issued or granted by the Undertakers under the Act of 1871 or this Order or any subsequent Act or Order shall subject to the provisions of any subsequent Act or Order rank *pari passu* without respect to the dates of the securities or of the Acts of Parliament or Orders confirmed by Parliament or resolutions by which the stock and mortgages were authorised and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the commencement of this Order.

Existing
mortgages to
have priority.

21. All mortgages granted by the Undertakers in pursuance of the Act of 1871 shall during the continuance of such mortgages have priority over any mortgages granted under the authority of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Priority of
money raised
on mortgage
or debenture
stock over
certain other
claims.

22. All money to be raised by the Undertakers on mortgage or by the issue of debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Undertakers for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Undertakers.

A.D. 1915.

Thirsk Gas.

23. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

Appointment of receiver.

24. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than five per centum per annum in respect of any moneys borrowed on mortgage or in respect of any debenture stock issued under the authority of this Order.

Limit of interest on borrowed money.

25. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital shall cease to apply to the Undertakers.

Borrowed money not to be converted into capital.

26. If any money is payable to any shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers for the same.

Receipt in case of persons not sui juris.

Meetings Directors &c.

27. After the commencement of this Order the ordinary general meetings of the Undertakers shall in every year be held in the month of February or at such other time or times as shall be appointed for that purpose by an order of a general meeting.

Meetings of Undertakers.

28. The directors may in any year declare and pay an interim half-yearly dividend out of the profits of the Undertakers without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the amount of the prescribed rates.

Interim dividends.

29.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may close the register of transfers of debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of either such register they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published or circulating within the limits of supply.

Closing of transfer books previous to declaring dividend or paying interest.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Thirsk Gas.

(2) Any transfer of stock or debenture stock made during the time when the register of transfers or the register of transfers of debenture stock as the case may be is so closed shall as between the Undertakers and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

Directors may determine remuneration of secretary and auditors.

30. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and the auditors of the Undertakers.

Notice of candidature for office of director.

31. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Undertakers unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Undertakers ten days at least before the day of election.

As to qualification of directors.

32. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Undertakers by reason of his holding any office or place of trust or profit under the Undertakers or by reason of his being interested in any contract with the Undertakers nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract. Provided that in the case of his being or becoming interested in any such contract with the Undertakers whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment as the case may be and also in the next annual report of the Undertakers and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Undertakers to give to the directors or any of them any security by way of indemnity.

Power to issue one certificate on transfer or transmission of several shares.

33. If by virtue of any deed of transfer or in consequence of the death or bankruptcy or insolvency of any shareholder or by any other lawful means any two or more shares in the capital of the Undertakers are transferred to or the interest in any two or more such shares becomes vested in one and the same person or body of persons the secretary may (notwithstanding anything in the Companies Clauses Consolidation Act 1845) when the deed of transfer or the

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

declaration authenticating such vesting is delivered to him require such person or persons to deliver up to him the existing certificates of such shares and shall be entitled to issue in lieu of such existing certificates a single new certificate for the total number of shares to which such person or persons has or have so become entitled.

A.D. 1915.

Thirsk Gas.

Quality Testing and Pressure.

34. The prescribed number of candles shall not be less than fourteen.

Quality of gas.

35. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-place shall be a testing-place provided by the Undertakers on the lands described in the schedule annexed to the Act of 1871 or in the First Schedule annexed to this Order.

Testing of gas.

36.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

Testing quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the rural district council of Thirsk approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall within three months after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

37.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing-place or at any public lamp supplied with gas as and when he thinks fit test the pressure at which the gas is

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. supplied and the Undertakers shall afford to the examiner all reasonable facilities for making the test.
Thirsk Gas.

Saving as to penalties.

38. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner reports or it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Miscellaneous.

Charge for gas supplied by means of prepayment meters.

39.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Undertakers in connexion therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Power to lay pipes in streets not dedicated to public use.

40. The Undertakers may but only with the consent of the owner of the soil of such street on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation with the Act of 1871 and this Order.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

41. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

A.D. 1915.

Thirsk Gas.

As to construction and placing of pipes &c. between mains and meters.

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which either in the first instance or on the occasion of any renewal are to be laid by the consumer on his own premises between the Undertakers' mains and the meter so far as the same are intended to be covered over:
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers. Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as is required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Thirsk Gas.

Power to
require use
of anti-fluc-
tuators for
gas engines.

42. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to
enter pre-
mises and
remove fit-
tings.

43. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Undertakers by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Undertakers shall not require to take a supply of gas from the Undertakers or to hire from the Undertakers all or any of the pipes meters fittings or apparatus belonging to the Undertakers and let by them on hire to any former occupier of such premises.

Gas con-
sumers to
give notice to
Undertakers
before re-
moving.

44. At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer either personally at the office of the Undertakers or in writing before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Undertakers.

Power to
refuse supply
to persons in
debt for other
premises.

45. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by the Undertakers without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Notice to
discontinue
supply of gas.

46. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at such office.

Period of
error in
defective
meters.

47. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Undertakers.

A.D. 1915.
Thirsk Gas.

48. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond the limits of supply.

Undertakers
may contract
with local
authority &c.
for supply in
bulk.

49. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Undertakers a supply or the continuance of a supply of gas for premises having a supply of gas from an installation other than that of the Undertakers or a supply of electricity unless he shall have previously agreed to pay the Undertakers such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Supply of gas
when con-
sumer has
separate
supply.

50.—(1) Subject as herein-after provided any fittings meters pipes pillars lamp-posts lamps burners and other articles and things (in this section called "fittings") let by the Undertakers on hire under the provisions of section 53 of the Act of 1871 shall not be subject to distress or the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be.

Fittings not
to be subject
to distress
and though
fixed to pre-
mises to
remain pro-
perty of
Undertakers.

(2) Subject as herein-after provided all fittings let by the Undertakers on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises at all times continue to be the property of and removable by the Undertakers. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.
Thirsk Gas.
Recovery of
demands.

51. Proceedings for the recovery of any demand made under the authority of the Act of 1871 or this Order or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal of
portions of
Act of 1871.

52. The sections of the Act of 1871 which are specified in the Second Schedule to this Order annexed are hereby repealed Provided that the repeal of section 33 of the Act of 1871 shall not prejudice any appointment of a receiver which may have been made or the continuance of any proceedings which may be pending under the provisions of that section.

Costs of Order.

Costs of
Order.

53. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

GAS LANDS.

Lands situate in the township or parish of Thirsk in the rural district of Thirsk in the North Riding of the county of York belonging or reputed to belong to the Undertakers containing by admeasurement three roods and thirty-six perches or thereabouts and bounded on the south partly by the existing gasworks of the Company and partly by lands belonging or reputed to belong to William Barker on the north-east partly by lands belonging or reputed to belong to the said William Barker and partly by lands belonging or reputed to belong to John Smith and Company Limited on the north partly by lands belonging or reputed to belong to the said John Smith and Company Limited and partly by lands belonging or reputed to belong to John Atkinson and on the west by Long Street Thirsk.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

SECOND SCHEDULE.

A.D. 1915.

Thirsk Gas.

ENACTMENTS REPEALED.

- Section 33 For appointment of receiver.
- Section 45 Limits of Act.
- Section 49 Sale of superfluous lands.
- Section 51 Prohibition against erecting gasworks elsewhere than
on lands specified in schedule.
- Section 55 Consumers may be required to consume by meter.
- Section 56 Power to Company to let meters.
- Section 57 Notice to Company of altering meters.
- Section 58 Repair of meters.
- Section 59 Power to enter buildings for ascertaining quantities of
gas consumed.
- Section 60 Register of gas meter to be prima facie evidence.
- Section 61 Fraudulently injuring meter.
- Section 62 Power to remove meters and fittings.
- Section 71 Contents of warrant.
- Section 72 Warrant shall include costs.
- Section 73 Recovery of sums due to Company.
- Section 74 Incoming tenant not liable to pay arrears of gas rent
&c.
- Section 83 Quality of Company's gas.
- Section 84 Company to maintain meter to test illuminating power
of gas.
- Section 85 As to testing the quality of gas.
- Section 86 Penalty if gas below prescribed illuminating power &c.
- Section 87 Cost of experiment to be paid according to events.
- Section 89 Penalties not cumulative.
- Section 90 Liability to gas rent not to disqualify justices.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

THIRSK DISTRICT WATER.

*Thirsk
Water.*

Order extending and defining the limits of supply of the Thirsk District Water Company Limited and authorising the Company to construct new Waterworks and to raise additional Capital and for other purposes.

Preliminary.

Short and
collective
titles.

1.—(1) This Order may be cited as the Thirsk District Water Order 1915.

(2) The Thirsk District Water Order 1879 and the Thirsk District Water Order 1884 (in this Order referred to respectively as “the Order of 1879” and “the Order of 1884” and collectively as “the Orders of 1879 and 1884”) and this Order may be cited together as the Thirsk District Water Orders 1879 to 1915.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as “the commencement of this Order.”

Incorpora-
tion of
general Acts.

3. The provisions of the Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the Waterworks Clauses Act 1847 “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner”) are (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of the Orders of 1879 and 1884 and of this Order) incorporated with this Order.

Interpreta-
tion.

4. In this Order—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Gas and Water Works Facilities Act 1870 have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expression “the limits of supply” means the limits defined in the section of this Order of which the marginal note is “Limits of supply”;

The expressions “deposited plans” and “deposited sections” mean respectively the plans and sections deposited for the purposes of this Order;

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

The expression "the new waterworks" means the receiving chamber and aqueduct by this Order authorised ;

A.D. 1915.

The expression "the directors" means the directors of the Undertakers.

Thirsk
Water.

Undertakers.

5. The Thirsk District Water Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Limits of Supply.

6.—(1) Section 4 (Limits of Order) of the Order of 1879 is hereby repealed.

Limits of
supply.

(2) The limits within which the provisions of the Orders of 1879 and 1884 and this Order shall be in force and have effect shall be the parishes of Thirsk Sowerby Carlton Miniott Boltby Felixkirk Kepwick Cowesby and Kirby Knowle all in the rural district of Thirsk in the North Riding of the county of York.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any of the said parishes of Kepwick Cowesby and Kirby Knowle the rural district council of Thirsk may provide a supply of water in accordance with the provisions of the Public Health Act 1875 or any company or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any such parishes in which the Undertakers are not furnishing or prepared to furnish such a supply as aforesaid as if in either case there were no Undertakers authorised by this Order to supply water therein. If any difference shall arise between the Undertakers and the said council or any such company or person as to the sufficiency of the supply of water in any of the said parishes such difference shall be settled by an arbitrator to be appointed on the application of either party by the Local Government Board.

Where
Undertakers
not furnish-
ing sufficient
supply local
authority or
company
may supply.

Lands.

8. In addition to any other lands which the Undertakers are under the Orders of 1879 and 1884 authorised to take or purchase the Undertakers may by agreement purchase take on lease acquire and use such of the lands shown on the deposited plans or such easements in over or under the same as they may require for the purposes of this Order.

Further
powers to
acquire lands
by agree-
ment.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of the said Acts grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which

Persons under
disability may
grant ease-
ments &c. to
Undertakers.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) *Act*, 1915.

A.D. 1915. persons other than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

*Thirsk
Water.*

Undertakers
may sell
lease &c.
spare lands.

10. The Undertakers may sell lease exchange or otherwise dispose of to such persons and in such manner as the Undertakers think fit any lands and property for the time being belonging to the Undertakers which they may not require for the purposes of their undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable) and on any sale lease exchange or disposal by the Undertakers of any such lands and property whether the same be subject to the said provisions of the Lands Clauses Consolidation Act 1845 or not they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the sale lease exchange or disposal subject to such reservations accordingly and may also make any such sale lease exchange or disposal subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter as they think fit.

Power to
hold lands
for protec-
tion of water-
works.

11. The Undertakers may hold any lands acquired by them under the powers of the Order of 1879 or this Order which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of that Order or the Lands Clauses Acts respectively but the Undertakers shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their undertaking.

Dwelling-
houses for
employees
offices &c.

12. The Undertakers may purchase or take on lease houses cottages and other buildings for persons in their employ and offices show rooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any such building upon any land for the time being belonging or leased to the Undertakers.

Works and Water.

Power to
construct
works.

13.—(1) Subject to the provisions of this Order the Undertakers may on the lands shown on the deposited plans so long as they are possessed of the said lands or so long as they may be entitled to do so under any agreement make and maintain in the lines and according to the levels shown on the deposited plans and the deposited sections

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

the following works in the rural district of Thirsk in the North A.D. 1915.
Riding of the county of York (that is to say):—

*Thirsk
Water.*

(a) A receiving chamber on Kepwick Moor in the parish of
Kepwick;

(b) An aqueduct (or line of pipes) commencing at or in the
receiving chamber by this Order authorised and termi-
nating in the parish of Felixkirk by a junction with the
existing aqueduct of the Undertakers in the road leading
from Boltby Village to Felixkirk Village;

together with all necessary or convenient cuts channels pipes culverts
drains sluices valves bye-washes shafts overflows waste water channels
gauges filters filter beds tanks banks walls approaches engines
machinery appliances and buildings and (subject to the consent of any
road authority and person affected) telegraphs and telephones necessary
or convenient in connexion with the before-mentioned works or any of
them Provided that no telegraphs or telephones constructed and
maintained under the provisions of this Order shall be used for the
transmission of telegrams within the exclusive privilege conferred upon
the Postmaster-General by the Telegraph Act 1869.

(2) The Undertakers may also upon the lands shown upon the
deposited plans and included within the "limit of collecting area"
marked thereon so long as they are possessed of the said lands or so
long as they are entitled to do so under any agreement make and
maintain in connection with the receiving chamber by this Order
authorised all such tunnels adits drifts conduits chambers and other
works as may be necessary or convenient for the purpose of augmenting
or improving the supply of water obtained by means of such receiving
chamber.

14. The Undertakers may on all or any of the lands for the time
being held by them in connection with their undertaking execute for
the purposes of or in connection with their undertaking any of the
works (other than wells and works for taking and intercepting water)
and exercise any of the powers mentioned in or conferred by
section 12 of the Waterworks Clauses Act 1847 Provided that the
Undertakers shall not under the powers of this section create or
permit the creation or continuance of any nuisance on any such lands
nor erect any buildings thereon except offices and dwellings for
persons in their employment and such buildings and works as may
be incident to or connected with their undertaking.

As to exer-
cise of powers
of section 12
of Water-
works Clauses
Act 1847.

15. In constructing the new waterworks the Undertakers may
deviate laterally to any extent within the limits of deviation shown
on the deposited plans and where no such limits are shown to any
extent within but not beyond the width of any road shown on the
deposited plans and vertically from the levels shown on the deposited

Limits of
deviation.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

- A.D. 1915. sections in the case of the receiving chamber by this Order authorised to any extent upwards or downwards and in the case of the aqueduct by this Order authorised to any extent not exceeding five feet upwards and twenty feet downwards Provided that no part of the said receiving chamber and except for the purpose of crossing over a stream or dyke no part of the said aqueduct shall be raised above the surface of the ground.
- Thirsk Water.*
- Limit of time for construction of works. 16. The new waterworks shall be commenced constructed and completed within the time and subject to the conditions prescribed by section 11 of the Gas and Water Works Facilities Act 1870 Provided that subject to the restrictions and provisions of this Order the Undertakers may from time to time alter enlarge extend and renew such works and lay down additional lines of pipes along the route of the aqueduct by this Order authorised in such manner as may be requisite or advisable for supplying water within the limits of supply.
- Power to take waters. 17. Subject to the provisions of this Order the Undertakers may collect divert take impound convey use and appropriate for the purposes of their undertaking all or any of the underground springs and waters which will or may be taken or intercepted by the receiving chamber by this Order authorised or by any of the works authorised by subsection (2) of the section of this Order of which the marginal note is "Power to construct works."
- Limiting powers to abstract water. 18. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament.
- For protection of Kepwick Estate. 19. For the protection of Edward Handley Warner his heirs and assigns or other the owner for the time being of the estate in the parish of Kepwick known as the Kepwick Estate (herein-after referred to as "the owner") the following provisions shall have effect:—
- (1) Notwithstanding anything contained in this Order or shown on the deposited plans the Undertakers shall not (except with the approval in writing of the owner or his agent)—
- (a) construct any works on any of the lands included within the "limit of collecting area" marked on the deposited plans save only on such parts of the lands as are coloured pink and marked Area No. 1 Area No. 2 and Area No. 3 respectively on the plan annexed to the agreement dated the twenty-fourth day of June one thousand nine hundred and fourteen and made between the said Edward Handley Warner of the one part and the Undertakers of the other part; nor

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xciv.]
(No. 1) Act, 1915.

(b) take or appropriate any water from or under the A.D. 1915.
Kepwick Estate except as provided by the said agreement: *Thirsk*
Water.

(2) It shall be lawful for the owner to lay down or construct and thereafter maintain over and along the site of the old tramway which is partly included within the limits of deviation of the aqueduct by this Order authorised (a portion of which tramway is shown on the deposited plans) any tramroads railways roads drains pipes cables or other works and to use the same for the conveyance of stone and minerals or for any other purpose whatsoever without being liable to make compensation to the Undertakers for any injury caused thereby to the said aqueduct. Provided that before constructing any such works as aforesaid which will interfere with or affect the said aqueduct one calendar month's previous notice in writing shall be given by the owner or his agent to the Undertakers who shall be at liberty on receipt of such notice to protect the said aqueduct in such manner as may be agreed between the owner and the Undertakers or settled in manner provided by the Arbitration Act 1889:

(3) The Undertakers shall on the completion of the said aqueduct and other works or of any repairs thereto or works for the maintenance thereof restore the road running from Incline Cottages to Railway Cottage as shown on the deposited plans to as good a state and condition as the same shall have been in prior to the construction of the said line of pipes and other works or prior to the commencement of any such repairs or works for maintenance as the case may be.

New Capital.

20. Notwithstanding the limitation prescribed by section 4 of the Order of 1884 with respect to the amount of the capital of the Undertakers for the purposes of the undertaking authorised by the Orders of 1879 and 1884 the capital of the Undertakers for the purposes of the undertaking authorised by the said Orders and this Order may consist of the capital of thirty-two thousand pounds mentioned in the said section 4 of the Order of 1884 and of further capital consisting of shares or stock (in this Order referred to as "the new capital") not exceeding in the whole six thousand pounds including any premiums which may be obtained on the sale thereof. Provided that the capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole thirty-eight thousand pounds unless the Undertakers are hereafter authorised to

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. raise further capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

*Thirsk
Water.*

New capital
to be sold by
auction or
tender.

21.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the rural district council of Thirsk and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the directors in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors may think fit or to one or more of these classes of persons only Provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

A.D. 1915.

*Thirsk
Water.*

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

22. The Undertakers shall not in any one year pay out of their profits any larger dividend on the new capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or than at the rate of five pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Limits of
dividend on
new capital.

23. In case in any year the funds of the Undertakers applicable to dividend after payment of the dividends on the preference capital (if any) of the Undertakers shall be insufficient to pay the full amount of dividend at the prescribed rates on each class of ordinary capital of the Undertakers such funds shall be applied in the first place in the payment of a dividend of an equal amount on all classes of ordinary capital until there shall have been paid a dividend for that year of seven pounds per centum on the amount actually paid up on such capital and then in payment of a further dividend on the capital authorised by the Order of 1879.

Dividends on
different
classes of
ordinary
capital to be
paid *pari
passu* up to
seven per
centum.

24. Notwithstanding anything in the Waterworks Clauses Act 1847 it shall not be lawful for the Undertakers to make up out of the profits of any year after the thirty-first day of December one thousand nine hundred and fifteen the deficiency in the dividends of any previous year.

Back divi-
dends.

25. Notwithstanding anything in section 7 (Limit of borrowing powers) of the Order of 1879 and section 6 (Limit of borrowing powers) of the Order of 1884 the Undertakers may borrow on mortgage of their undertaking any sum or sums of money (inclusive of any sums already borrowed by them) not exceeding in the whole one-third of the amount of the capital of the Undertakers for the purposes of their undertaking at the time actually raised by the issue of shares or stock under the provisions of the Orders of 1879 and 1884 or this Order including any premium that may have been or may be obtained on the sale of any such shares or stock but no higher rate of interest than five pounds per centum per annum shall

Limit of
borrowing
powers.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915. charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

*Thirsk
Water.*

Supply to
houses partly
used for
trade &c.

34. The Undertakers shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Supply for
farming pur-
poses.

35. Where water supplied by the Undertakers to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Undertakers to refuse a supply of water for domestic purposes at the rates authorised by section 19 of the Order of 1879.

Price of
supply by
measure.

36. The price to be charged by the Undertakers for water supplied by measure within the limits of supply shall not exceed two shillings per thousand gallons.

Amending
section 19 of
Order of
1879.

37. Section 19 (Rates) of the Order of 1879 shall be read and have effect as if there were added at the end of that section the following proviso (that is to say):—

Provided also that if the premises so supplied with water consist of a part only of any dwelling-house and such part is not separately assessed to the rate for the relief of the poor the annual rent or value of such premises shall be deemed to be a fairly apportioned part of the annual rent or value of the whole dwelling-house according to the poor law rate assessment.

Undertakers
not bound to
supply several
houses by one
pipe.

38. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of
discontinu-
ance.

39. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at such office.

Notice to
Undertakers
of connecting
or discon-
necting
meters.

40. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

[5 & 6 GEO. 5.] *Gas and Water Orders Confirmation* [Ch. xcv.]
(No. 1) Act, 1915.

Miscellaneous.

A.D. 1915.

41. The Undertakers may but only with the consent in writing of the owner of the soil of such street on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation with the Order of 1879 and this Order.

*Thirsk
Water.*

Power to lay
pipes in
streets not
dedicated to
public use.

42. For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions and provisions of sections 48 to 52 (inclusive) of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

As to com-
munication
pipes.

43. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner:

Power to
Undertakers
to repair
communica-
tion pipes.

Provided that except in case of emergency the Undertakers shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

44. Subject to the provisions of the Waterworks Clauses Act 1847 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Undertakers and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop up break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Undertakers shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Detection of
waste.

[Ch. xcv.] *Gas and Water Orders Confirmation* [5 & 6 GEO. 5.]
(No. 1) Act, 1915.

A.D. 1915.

Thirsk
Water.

Differences
with road
authority or
railway or
other com-
pany.

45. If any difference arises between the Undertakers and any road authority railway canal or other company or person whose lands or works the Undertakers have power to cross under the authority of this Order for the purposes of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits mains pipes or works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Amending
section 27 of
Order of
1879.

46. Section 27 of the Order of 1879 shall be read and have effect as if the words "except with the consent of the person or " persons company or local authority so empowered and of the local " authority of the district in which the supply is to be given" were added at the end of that section.

Fittings not
to be subject
to distress.

47. Any pipes valves cocks baths soil-pans waterclosets apparatus and receptacles let by the Undertakers for hire under the provisions of section 22 of the Order of 1879 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken into execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Recovery of
demands.

48. Proceedings for the recovery of any demand made under the authority of the Orders of 1879 and 1884 and this Order or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Costs of
Order.

49. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.C.